

25STCV02193 25STCV02193

County: los-angeles

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Case Number: 25STCV02193 Hearing Date: June 24, 2026 Dept: 406

TOSHA CRIM,

Plaintiff,

v.

CITY OF LOS ANGELES,

Defendant.

Case No.: 25STCV02193

Hearing Date: June 24, 2026

[TENTATIVE]

order RE:

plaintiff's motion to compel further

responses to requests for production

BACKGROUND

On January 24, 2025, Plaintiff Tosha

Crim filed this employment discrimination action against Defendant City of Los

Angeles. Plaintiff filed the operative First Amended Complaint on April 25, 2025.

On May 6, 2026, Plaintiff filed the instant motion to compel further responses to requests for production.

Defendant filed an opposition on June 10, 2026. Plaintiff filed a reply on June 17, 2026.

LEGAL STANDARD

Upon receiving responses to its discovery requests, the propounding party may move for an order compelling further responses if the responses are incomplete or evasive, or objections are without merit or too general. (Code Civ. Proc., §§ 2030.300(a), 2031.310(a), 2033.290(a).)

A party seeking production of documents bears the initial burden of showing good cause through a fact-specific showing of relevance. (Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98.) Once this showing is made, the burden shifts to the responding party to justify any objections. (Ibid.)

DISCUSSION

I.

Timeliness

The deadline for serving a motion to

compel further responses is 45 days after receipt of the responses. (Code Civ.

Proc., § 2031.310(c).) The deadline is extended by two court days if responses

are served electronically. (Id., § 1010.6(a)(3)(B).)

The instant motion concerns

Defendant's amended responses, served electronically on March 20, 2026. (Banker

Decl., Ex. D; Gutierrez Decl., Ex. B.) Applying the 45-day deadline plus two

court days for electronic service results in a deadline of May 6, 2026.

Plaintiff filed this motion on May 6, 2026, thus rendering it timely.

II.

Meet and Confer

A motion to compel further must be

accompanied by a meet and confer declaration demonstrating an attempt to

resolve the matter informally. (Code Civ. Proc., §§ 2030.300(b)(1),

2031.310(b), 2033.290(b).)

Here, Plaintiff has not satisfied the meet

and confer requirement. Defendant served the subject responses on March 20,

2026. (Banker Decl., Ex. D.) On May 5, 2026 at 10:53pm, the night before the

motion deadline, Plaintiff's counsel emailed Defendant's counsel to request an

extension of the motion deadline. (Id., Ex. E.) When Defendant's counsel

did not respond, Plaintiff filed this motion on the deadline of May 6, 2026.

This last-minute request for extension does not constitute a good faith meet and confer.

However, given that only three requests are at issue, and the parties' positions are clearly set forth in their respective papers, the Court will proceed on the merits.

III.

Attorney-Client Privilege

"If a defendant employer hopes to prevail by showing that it investigated an employee's complaint and took action appropriate to the findings of the investigation, then it will have put the adequacy of the investigation directly at issue, and cannot stand on the attorney-client privilege or work product doctrine to preclude a thorough examination of its adequacy." (Wellpoint Health Networks v. Superior Court (1997) 59 Cal.App.4th 110, 128.) "The defendant cannot have it both ways. If it chooses this course, it does so with the understanding that the attorney-client privilege and the work product doctrine are thereby waived." (Ibid.)

Here, Defendant's forty-eighth affirmative defense is titled "Remedial Processes and Action." It alleges that "Plaintiff's purported causes of action are barred because Plaintiff failed to comply with

the remedial processes available to Plaintiff by the City of Los Angeles and/or Defendant took prompt action upon notice of all of Plaintiff's alleged claims, if any there were." (Answer ¶ 48.) This affirmative defense encompasses the adequacy of an investigation. Thus, Defendant has waived the attorney-client and work product privileges over investigation documents. Conversely, if Defendant does not produce investigation documents, it will waive the adequacy of its investigation as part of its defense. Defendant cannot have it both ways.

IV.

Deliberative Process Privilege

"Under the deliberative process privilege, senior officials of all three branches of government enjoy a qualified, limited privilege not to disclose or to be examined concerning not only the mental processes by which a given decision was reached, but the substance of conversations, discussions, debates, deliberations and like materials reflecting advice, opinions, and recommendations by which government policy is processed and formulated." (San Joaquin County Local Agency Formation Commission v. Superior Court (2008) 162 Cal.App.4th 159, 170.) "The key question in every case is 'whether the disclosure of materials would expose an agency's decisionmaking process in such a way as to discourage candid discussion within the agency and thereby undermine the agency's ability to

perform its functions.” (Id. at pp. 170-71.)

Here, none of the requests at issue

implicate the deliberative process privilege. The requests concern the job

duties and investigations relating to one employee, Plaintiff. This has no

bearing on the deliberative process “by which government policy is processed

and formulated.” (See San Joaquin County Local Agency Formation Commission,

supra, 162 Cal.App.4th at p. 170.) Disclosure of the requested information

would not expose any agency’s decision-making process, discourage candid

discussion within the agency, or otherwise undermine the agency’s functions. (Id.

at pp. 170-71.)

“The party asserting a privilege has the

burden of proof regarding the existence of the privilege.” (Kizer v. Sulnick

(1988) 202 Cal.App.3d 431, 439.) Defendant does not attempt to meet this burden

with regards to the deliberative process privilege. Defendant simply invokes

the privilege with no explanation as to how it applies to the particular

information being requested.

V.

The Requests at Issue

a. RFP No. 20

RFP No. 20 seeks all documents

referencing Plaintiff's job duties before her transfer to Sun Valley. There is good cause for the information because Plaintiff's job duties are relevant to her allegations of discrimination and wrongful termination. Defendant responded: "After a diligent search and reasonable inquiry, Defendant will produce non-privileged documents responsive to this Request, including but not limited to Training documents (Bates No. 211-1-7)."

This is not a proper statement of compliance. A statement of compliance must "state that the production . . . will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production." (Code Civ. Proc., § 2031.220.) Defendant's response fails to state whether the production will be allowed in whole or in part, and fails to confirm that all documents in its possession to which no objection is being made will be produced. Moreover, Defendant fails to establish that Plaintiff's job duties constitute privileged information. Thus, a further response is warranted.

b. RFP Nos. 25-26

RFP Nos. 25 and 26 seek documents

and communications referring to any investigation Defendant conducted after

Plaintiff complained of failure to accommodate her disability. There is good cause for the information because the adequacy of Defendant's investigation is relevant to the avoidable consequences defense. Defendant responded: "After a further diligent search and reasonable inquiry, Defendant has identified non-privileged HR email communications responsive to this Request. Defendant will produce such non-privileged responsive documents Bates No. 210 1193-1960."

First, this is not a proper statement of compliance for the same reasons discussed above. Furthermore, as discussed above, the attorney-client privilege is waived over investigation-related documents if Defendant intends to invoke the adequacy of its investigation as part of its defense. Thus, further responses are warranted.

CONCLUSION

Plaintiff's motion to compel further responses is GRANTED. Defendant shall provide further responses to RFP Nos. 20, 25, and 26 within 20 days of today. If Defendant does not produce investigation-related documents and communications, Defendant will be barred from introducing evidence concerning the adequacy of its investigation.